

Smt. Asma Khatoon And Another v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 17 February 2023 · Writ - C No. 4882 of 2023 · **Disposed; recovery withdrawn, fresh order after hearing under Code.**

HEADNOTE

On the Electricity Department's statement that the impugned recovery of theft dues had been withdrawn and that a fresh order would follow after hearing, the writ was disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Asma Khatoon and another approached the Allahabad High Court against an order dated 25 June 2022 passed by respondent no. 3 and a recovery citation dated 11 January 2023 issued by respondent no. 5. Both were aimed at recovering electricity dues said to arise from theft of electricity. Before the Court, counsel for the Electricity Department stated on instructions that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioners were heard.

HOLDING-UNITS

HOLDING-UNIT · Electricity Supply Code, 2005

theft-dues recovery; fresh order after hearing

HOLDING

Where the electricity department states that the impugned recovery of theft dues stands withdrawn and that a fresh order will be passed after hearing, the writ is disposed of with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The Court did not decide the theft allegation or the dues. ¶ 1

FLAG No clause number is stated; the order refers only to the procedure prescribed under the Electricity Supply Code, 2005.

PRINCIPLE TAGS

UP-2005::procedure The writ was disposed once the department withdrew the theft-dues recovery and undertook to pass a fresh order only after hearing the petitioners, and only by the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS ARE LIABLE FOR THEFT OF ELECTRICITY AND WHETHER ANY DUES ARE RECOVERABLE UNDER THE ORDER DATED 25.6.2022 OR THE CITATION DATED 11.1.2023.

The recovery was withdrawn. Liability and quantum were left to a fresh order after hearing. ¶ 1